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1055 Budapest
Tel.: +36 1 391-1400
ugyfelszolgalat@naih.hu
Falk Miksa utca 9-11.
Fax: +36 1 391-1410
www.naih.hu

Case Number:
NAIH-3977-4/2023.
Subject:
Decision

DECISION

The National Authority for Data Protection and Freedom of Information (hereinafter: Authority) makes the following decisions in the data protection authority procedure initiated based on the application (hereinafter: Application) submitted by the Applicant, represented by attorney Dr. Nehéz-Posony Katinka, against the Respondent, represented by attorney Dr. Nagy János, regarding unlawful data processing and violation of the rights of the data subject related to news articles published on the hírportál.hu internet platform.

The Authority partially grants the Applicant's request and establishes that

- I.
- during the data processing of the Respondent
- a. without an appropriate legal basis, disclosed the personal data of the Applicant specified in paragraph (81) of this decision in the news articles published at the Article1 URL (hereinafter: Article1) and the Article2 URL (hereinafter: Article2), thereby violating Article 6(1) of the General Data Protection Regulation;
 - b. by responding to the Applicant's request as a data subject only in general terms, emphasizing its own interests while disregarding the personal rights of the Applicant, conducted the balancing of interests supporting its legitimate interest, and consequently did not delete the unlawfully processed personal data of the Applicant, violating Articles 17(1) and (3), as well as Article 21(1) of the General Data Protection Regulation;
 - c. by not providing information in its response to the Applicant's request as a data subject regarding the data processing related to the complained articles, as well as the data processed by it concerning the Applicant, violated Articles 14(2), 15(1) and (3) of the General Data Protection Regulation.

II.

The Authority ex officio establishes that the Respondent, in the articles referred to in point I. a., violated Article 5(1)(a), (b), and (c), as well as Article 5(2) of the General Data Protection Regulation by disclosing the personal data specified in paragraph (81) of this decision.

III.

As a consequence of the data protection violations specified in points I. and II.

- a) imposes an administrative fine of 10,000,000 HUF (Ten Million Forints) ex officio, and
- b) orders, based on Article 58(2)(g) of the General Data Protection Regulation, the immediate deletion of the unlawfully processed personal data specified in point I. after the expiration of the time limit for initiating legal proceedings against this decision or, in the case of administrative litigation, after the finality of the court decision;
- c) based on Article 58(2)(f) of the General Data Protection Regulation, temporarily restricts access to the personal data published in Article1 and Article2 as a precautionary measure until the expiration of the time limit for initiating legal proceedings against this decision or, in the case of administrative litigation, until the court's final decision.

IV.

The Respondent is obliged to provide written proof of compliance with the obligations specified in points III. b) and c) to the Authority within 15 days from the implementation of the measure, along with supporting evidence.

V.

The Authority rejects the Applicant's request beyond the above.

The fine specified in point III. a) must be paid to the Authority's centralized revenue collection account (10032000-01040425-00000000 Centralized Collection Account IBAN: HU83 1003 2000 0104 0425 0000 0000) within 30 days from the finality of this decision.

When transferring the amount, reference must be made to the NAIH/3977/2023. FINE number.

2

If the Applicant does not fulfill their obligation to pay the fine within the deadline, they are required to pay a late fee. The amount of the late fee corresponds to the statutory interest, which is equal to the central bank base rate valid on the first day of the calendar half-year affected by the delay.

In the event of non-compliance with the data controller's action determined as a consequence of the data protection violations established in this decision, as well as the non-payment of the imposed data protection fine and late fee, the Authority shall order the enforcement of the decision.

There is no administrative remedy against this decision, but it can be contested in an administrative lawsuit by a petition addressed to the Metropolitan Court within 30 days from the notification. The petition must be submitted electronically to the Authority, which will forward it along with the case documents to the court. A request for a hearing must be indicated in the petition. For those not fully exempt from personal fees, the court review procedure fee is HUF 30,000, and the case is subject to the payment of the court fee. Legal representation is mandatory in proceedings before the Metropolitan Court.

JUSTIFICATION

I. The Application

(1)

The Applicant submitted their application on February 9, 2022, via e-Papír, in which they objected to the data processing carried out in the news articles published by the Respondent's press product (www.hirportal.hu) referenced below. They requested that the Authority initiate a data protection authority procedure against the Respondent based on Section 60 (1) of the Infotv. and

- establish, based on Section 61 (1) b) ba) of the Infotv., the unlawful processing of the Applicant's personal data by the Respondent and the violation of the rights of data subjects as set out in the General Data Protection Regulation;
- order the deletion of unlawfully processed data based on Section 61 (1) b) bc) of the Infotv.;
- prohibit further data processing based on Section 61 (1) b) bd) of the Infotv.;
- impose a fine on the data controller based on Section 61 (1) b) bg) of the Infotv.:

(2)

Article 1: The article titled "Article 1 Title" (publication date: 2019.02.25., available at: Article 1 URL) contains personal data about the Applicant based on their testimony in a criminal proceeding related to the Applicant's professional activities as a midwife and their role in the criminal proceeding. As of now (2023.04.05.), the complained image depicting the Applicant is no longer available in the article.

(3)

Article 2: The article titled "Article 2 Title" (publication date: 2021.08.10., available at: Article 2 URL) evaluates the Applicant's professional conduct in connection with their testimony in a criminal proceeding related to an infant death and questions the Applicant's alleged responsibility for the newborn's death, linking them to other infant death tragedies, and claims a lack of the Applicant's fundamental professional knowledge, as well as the necessary qualifications and official permits to practice their profession. The complained Article 2 is available with modified content (2023.04.05.): before the substantive part of the article, the following italicized content is available in quotation marks: "The defendant violated the plaintiff's personality right to a good reputation by falsely spreading in the article that the plaintiff [...] The defendant infringes on the plaintiff's personality right to the protection of

personal data, as the defendant processes the plaintiff's personal data related to their professional conduct, professional knowledge, as well as personal data and image related to their testimony in a criminal proceeding without a proper legal basis and against the plaintiff's expressed objection, without a justified compelling legitimate interest, in violation of the principles of fair data processing, purpose limitation, and accuracy."

(4)

The Applicant stated that their husband is a well-known opposition politician, while the acquisition of midwifery qualifications and the tragic deaths occurred before the political career of the spouse. The Applicant did not object to the processing and disclosure of personal data related to their marital status or their role in a joint business entity with their husband.

1 The form named NAIH_K01 serves to initiate the administrative lawsuit, which can be downloaded from the link <https://www.naih.hu/kozig-hatarozat-birosagi-felulvizsgalata>.

****3****

related. The contested data processing activities, however, are related to the Applicant's professional activities, thus they do not qualify as public activities or information related to the Applicant's public appearances.

(5)

The Applicant requested the deletion of the following personal data in connection with her midwifery activities: her name – also in a manner referring to her husband; her image; data regarding her qualifications or the perceived lack thereof; data regarding perceived professional incompetence related to her activities; her testimony concerning the deaths of children in a negative context, stating that she is currently appearing as a witness. Finally, the Applicant requested the deletion of her full name from the search tags of the articles.

(6)

On December 15, 2021, the Applicant submitted a request to the Respondent, in which she requested information regarding her processed personal data in accordance with Article 15 of the General Data Protection Regulation:

- a.) information regarding her processed personal data,
- b.) a copy of the personal data held by the Respondent that has not been published in the contested articles, based on Article 15(3),
- c.) an objection to the data processing under Article 21(1), and
- d.) a request for the deletion of her personal data under Article 17(1).
- e.) Additionally, she requested information from the Respondent on how it complied with the provisions of Articles 12 and 14.

(7)

According to the Respondent's response dated January 10, 2022, based on constitutional and legal provisions, the data published in the contested article was used by the editorial team for opinion formation in a public debate of significant public interest, in order to inform the public within the framework of freedom of expression, thereby contributing to public discourse and its substantive assessment. In its view, there was no unlawful data processing in the contested article.

****II. Facts****

(8)

It can be established regarding the contested articles that in Article 1, the Respondent published information by repeating data from a post made on February 24, 2019, by a well-known pediatrician on a public, accessible social media page, and from the testimony given by the Applicant in court on January 4, 2019, as well as by linking to an article available on the referenced news portal (referenced article 1 URL, February 22, 2019) concerning the Applicant's midwifery activities. Article 1 is currently available on the Respondent's website with modified content since February 25, 2019.

(9)

The image published in Article 1 depicts the Applicant in an environment where the "clean bed suitable for childbirth" can be identified among the material and hygiene conditions defined in Government

Decree 35/2011. (III. 1.) regarding the professional rules, conditions, and exclusions of childbirth outside the institution. Additionally, the walls and flooring of the room shown in the photo are tiled, which, similar to the conditions provided in the institution, serves to ensure hygiene.

(10) The contested image – which is no longer available in the contested Article 1 – had the following content: the Applicant was sitting in civilian clothes in a bedroom-like room next to a French bed with a colorful cover, while the wall and floor were tiled.

(11) Article 2 was published following press reports on August 10, 2021, and earlier. In the absence of a statement from the Respondent, the Authority treats the further linked articles in Article 2 as sources [“referenced news portal 2.” - August 10, 2021 – referenced article 2 URL, “two infants” - February 7, 2019 – referenced article 3 URL, “was seven weeks old” - February 2019 – referenced article 4 URL, “referenced news portal 2.” - August 10, 2021 – referenced article 5 URL]. Article 2 is currently available on the Respondent's online platform.

(12) The Authority, in its decision NAIH-2809-2/2022, called on the Respondent to make a statement and informed the Applicant about the initiation of the data protection authority procedure.

(13) The Respondent expressed its position in Statement 1 (NAIH-2809-6/2022). It referred to Article IX (1)-(2) of the Fundamental Law, Section 10 of the Act on Media Services and Mass Media, and emphasized that the contested...

****Article 4****

The data disclosed in the article was utilized by the editorial office, as a press entity, for opinion formation in one of today's widely discussed, significant public debates, in order to adequately inform the public within the framework of freedom of expression, contributing to the exercise of fundamental rights such as freedom of the press and the right to information. In its view, there was no unlawful data processing in the contested article. As the source of Article 1, the name of the doctor was referenced from a post on the doctor's social media page [URL of the social media post], while for Article 2, it indicated the article on the news portal hirportal2.hu on the same topic, but did not reference the source article with a precise link.

(14) In response to the Authority's repeated call, the Applicant supplemented its statement in Statement 2 (NAIH-2809-8/2022) by stating that, in its opinion, the public debate it referred to was still relevant at the time the contested articles were published.

(15) Subsequently, the Authority called upon the Applicant for further statements, to which the Applicant attached the written announcement from the Press Office of the Budapest Court of Appeals dated June 11, 2021, regarding the upholding of the first-instance judgment in the so-called K-vitamin case [<https://fovarosiitlotabla.birosag.hu/sajtokozlemeny/20210611/fovarosi-itelotabla-helybenhagyta-az-un-k-vitamin-ugyben-hozott-elfok>, hereinafter: court press release].

(16) The Applicant stated regarding the image published in Article 1 that the Respondent used a photograph that originally appeared as an illustration for an interview with the Applicant on the Hungarian language page of the magazine named *magazine* on January 21, 2018, in the article titled "title of the article" by author name [URL of the magazine article]. The Applicant contributed solely to the illustration of this article when the photograph was taken. In its opinion, the mere fact that the image is publicly available does not render the consent unnecessary, as there was a different purpose and no legal basis for its use.

(17) The Applicant further explained that there has never been any criminal or other (court) proceedings against them concerning their midwifery practice, thus they cannot comment on the beginning or conclusion of such proceedings. There was no official matter in which their professional responsibility was disputed or examined. The Applicant was heard as a witness by the Budapest Regional Court in case number 7.B.26/2017 on January 4, 2019, in which the proceedings were initiated against a parent couple whose child was born on November 12, 2012, in the Applicant's practice, outside of an institution, and who died at two months of age. During the criminal proceedings, the Applicant testified as to whether the newborn received K-vitamin and whose responsibility it was to administer it. The Applicant's professional responsibility did not arise during the proceedings; the Budapest Court of Appeals upheld the first-instance judgment in the so-called K-vitamin case, which

established the parents' responsibility.

(18) Article 2 also mentions two other deaths in connection with the Applicant, suggesting that the Applicant's midwifery activities resulted in them. In one case that occurred in 2015, a newborn was stillborn during a delivery attended by the Applicant. No proceedings were initiated in this case, and the Applicant bore no professional responsibility for the death. The other case, known in the media as the "media designation" case from May 2015, involved the death of a 19-month-old child, which the Applicant had no connection to; according to the article published on January 8, 2019, on the referenced news portal³ [URL of the referenced news portal³ article], the tragedy of the child who died due to a lack of K-vitamin involved one person: the pediatrician, not the Applicant. However, the Respondent misleadingly presented the deaths in the articles in such a way that one could conclude from the overall content and the title of the articles that they were consequences of the Applicant's professional inadequacy, thus suggesting false conclusions and disseminating untrue information about the Applicant.

(19) In the Applicant's view, the Respondent falsely asserted the following in its articles, making the data processing necessarily inaccurate and unlawful:

- It is false that the Applicant had any connection to the death of any infant or that they bore any responsibility in this regard.
- It is false that the Applicant lacked professional qualifications.
- It is false that the Applicant performed midwifery activities without a license.
- It is false that the Applicant lacked the necessary professional knowledge.

5

- It is unfounded that the midwife bears any professional responsibility regarding the administration of vitamin K to the infant after birth.

(20) In response to the Authority's call, the Applicant stated in Declaration³ (NAIH-2809-12/2022) that in answering the request of the affected party, the Applicant did not take into account the final judgment attached to the request, as there was no party to the litigation, and the judgment did not pertain to data processing. The Applicant also attached a post from the doctor's social media page dated February 24, 2019, which is the source of Article¹ and is currently accessible.

(21) In response to the Authority's repeated call, the Applicant stated in Declaration⁴ (NAIH-2809-16/2022) that while they are aware of the court press release, the publication of Article¹ and Article² serves public debate, as family tragedies involving the death of infants always attract significant public interest. The criminal proceedings initiated due to these tragedies also account for significant public interest, including the proceedings mentioned in the articles. The relevance of the public debate is confirmed by the fact that the Applicant has taken an active public and political role by actively campaigning alongside her political husband in recent times. Due to this active public engagement, the Applicant's identity and other activities are also of public interest.

(22) The Applicant substantiated her active public and political engagement and public figure status in Declaration⁵ (NAIH-2809-19/2022) with three articles published in 2022:

- URL¹,
- URL²,
- URL³.

(23) The Applicant indicated the source of the image published in Article¹: magazine article URL. She further explained that the contested image, which had previously appeared on other internet sites with the Applicant's consent and in connection with the activity that forms the basis of the contested article, contributes to a public interest social debate by presenting a person who is a direct participant in this social debate. In her view, the legal conditions for restriction were met, as the contested article aimed at the free discussion of public affairs, and the image contains information that promoted this debate, thus the lack of consent for the use of the image constituted a necessary and proportionate restriction (Civil Code § 2:44).

(24) The Authority informed the Applicant (NAIH-3977-2/2023) and the Respondent (NAIH-3977-1/2023) about the completion of the evidentiary procedure and drew their attention to the

right to make statements and to exercise the right to access documents. The delivery of the order to the Applicant took place successfully on March 9, 2023, and to the Respondent on March 21, 2023. In this case, neither party has approached the Authority with a statement or a request for document access.

III. Applicable Legal Provisions

(25) According to Article VI (3) of the Fundamental Law of Hungary (hereinafter: Fundamental Law), everyone has the right to the protection of their personal data, as well as to the knowledge and dissemination of public interest data.

(26) Based on Articles IX (1) and (4) of the Fundamental Law, everyone has the right to freedom of expression. The exercise of freedom of expression must not aim to violate the human dignity of others.

(27) According to Article IX (2) of the Fundamental Law, Hungary recognizes and protects the freedom and diversity of the press, ensuring the conditions necessary for the formation of democratic public opinion through free information.

(28) According to Article 2 (1) of Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter: General Data Protection Regulation), the General Data Protection Regulation must be applied to the processing of personal data by automated means, in whole or in part, as well as to the non-automated processing of personal data that forms part of a filing system or is intended to be part of a filing system.

6

(29) According to Article 4(1) of the GDPR, "personal data" means any information relating to an identified or identifiable natural person ("data subject"); an identifiable natural person is one who can be identified, directly or indirectly, particularly by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.

(30) According to Article 4(2) of the GDPR, "processing" means any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, or destruction.

(31) According to Article 4(7) of the GDPR: "controller" means the natural or legal person, public authority, agency, or any other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union or Member State law, the controller or the specific criteria for the designation of the controller may also be provided for by Union or Member State law.

(32) According to Article 5(1)(b) of the GDPR, personal data may only be collected for specified, explicit, and legitimate purposes and may not be further processed in a manner that is incompatible with those purposes ("purpose limitation"); according to point (c), personal data must be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ("data minimization").

(33) According to Article 5(2) of the GDPR, the controller is responsible for compliance with paragraph 1 and must be able to demonstrate such compliance ("accountability").

(34) According to Article 6(1) of the GDPR, personal data may be processed lawfully only if at least one of the following applies:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular if the data subject is a child.

(35) According to Article 14(2) of the GDPR, the controller shall provide the data subject with any supplementary information necessary to ensure fair and transparent processing, including:

- b) where the processing is based on point (f) of Article 6(1), information about the legitimate interests pursued by the controller or a third party;

(36) According to Article 15(1) of the GDPR, the data subject has the right to obtain from the controller confirmation as to whether or not personal data concerning them is being processed, and, if that is the case, access to the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, including particularly recipients in third countries and international organizations;
- d) where applicable, the envisaged period for which the personal data will be stored, or, if that is not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification, erasure, or restriction of processing of personal data concerning them, and to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) if the data has not been collected from the data subject, any available information as to its source;

7

- h) the fact of automated decision-making mentioned in Article 22(1) and (4), including profiling, as well as understandable information regarding the logic involved and the significance of such data processing for the data subject, and the expected consequences for the data subject.

(37) According to Article 17(1) of the General Data Protection Regulation, the data subject has the right to request the erasure of personal data concerning them without undue delay, and the data controller is obliged to erase personal data concerning the data subject without undue delay if one of the following grounds applies:

- a) the personal data are no longer necessary for the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws their consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation to which the data controller is subject under Union or Member State law;
- f) the personal data were collected in relation to the offer of information society services referred to in Article 8(1).

(38) According to Article 17(2) of the General Data Protection Regulation, if the data controller has made the personal data public and is obliged to erase it under paragraph (1), it shall take reasonable steps, taking into account available technology and the cost of implementation, to inform data controllers that are processing the data that the data subject has requested the erasure of links to such personal data or copies or replications of such personal data.

(39) According to Article 17(3) of the General Data Protection Regulation, paragraphs (1) and (2) shall not apply to the extent that processing is necessary:

- a) for exercising the right of freedom of expression and information;

(40) According to Article 21(1) of the General Data Protection Regulation, the data subject has the right to object at any time, on grounds relating to their particular situation, to the processing of personal data concerning them based on Article 6(1)(e) or (f), including profiling based on those provisions. In this case, the data controller shall no longer process the personal data unless the data controller demonstrates compelling legitimate grounds for the processing which override the interests, rights,

and freedoms of the data subject, or which relate to the establishment, exercise, or defense of legal claims.

(41) According to Article 77(1) of the General Data Protection Regulation, without prejudice to any other administrative or judicial remedy, every data subject shall have the right to lodge a complaint with a supervisory authority – in particular in the Member State of their habitual residence, place of work, or the place of the alleged infringement – if the data subject considers that the processing of personal data concerning them infringes this Regulation.

(42) According to Article 85(1) of the General Data Protection Regulation, Member States shall reconcile the right to the protection of personal data under this Regulation with the right to freedom of expression and information, including processing for journalistic purposes, as well as for the purposes of artistic or literary expression.

(43) According to Article 85(2) of the General Data Protection Regulation, Member States shall provide for exceptions or derogations for the processing of personal data for journalistic purposes, as well as for the purposes of artistic or literary expression, from Chapter II (Principles), Chapter III (Rights of the Data Subject), Chapter IV (Controller and Processor), Chapter V (Transfers of Personal Data to Third Countries or International Organizations), Chapter VI (Independent Supervisory Authorities), Chapter VII (Cooperation and Consistency), and Chapter IX (Specific Processing Situations), where such exceptions or derogations are necessary to reconcile the right to the protection of personal data with the right to freedom of expression and information.

8

the right to data protection can be reconciled with the freedom of expression and the right to information.

(44) According to the preamble paragraph (65) of the General Data Protection Regulation, “[...] the further retention of personal data is considered lawful if it is necessary for the exercise of the right to freedom of expression and information, compliance with a legal obligation, the performance of a task carried out in the public interest, or the exercise of a public authority conferred on the data controller, or for reasons of public interest in the field of public health, for the purpose of public interest archiving, for scientific and historical research purposes, or for statistical purposes, or necessary for the establishment, exercise, or defense of legal claims.”

(45) According to the preamble paragraph (69) of the General Data Protection Regulation, “[a]ny data subject must be granted the right to object to the processing of personal data concerning them, even if the personal data are lawfully processed because the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller, or is based on the legitimate interests of the data controller or a third party. The data controller must demonstrate that their compelling legitimate interest overrides the interests or fundamental rights and freedoms of the data subject.”

(46) According to the preamble paragraph (153) of the General Data Protection Regulation, “[t]he law of the Member States must reconcile the rules regarding freedom of expression and information – including journalistic, scientific, artistic, and literary expression – with the rights concerning the protection of personal data under this Regulation. It is appropriate that the processing of personal data solely for journalistic, scientific, artistic, or literary expression purposes may be subject to exceptions or exemptions from certain requirements laid down in this Regulation, if necessary to reconcile the right to data protection with the rights to freedom of expression and information, as guaranteed by Article 11 of the Charter. This is particularly applicable to the processing of personal data in the audiovisual field, as well as in news archives and press libraries. Consequently, Member States shall determine, by legislative measures, the necessary exceptions and derogations in order to balance these fundamental rights. Member States shall adopt exceptions and derogations regarding general principles, the rights of the data subject, the data controller and processor, the transfer of personal data to third countries or international organizations, independent supervisory authorities, cooperation and uniform application, as well as regarding specific data processing situations. If these exceptions or derogations differ among Member States, the applicable national law of the data controller shall apply. In consideration

of the significant importance of the right to freedom of expression in any democratic society, concepts belonging to this freedom, such as journalism, should be interpreted broadly.”

(47) According to Section 3(5) of Act CXII of 2011 on the Right to Informational Self-Determination and Freedom of Information (hereinafter: Infotv.), public interest data: any information or knowledge recorded in any manner or form, which does not fall under the definition of personal data, held by an entity or person performing a state or local government task, or any other public task defined by law, and which arises in connection with its activities, regardless of the manner of its processing, its independent or collective nature, including, in particular, the assessment of jurisdiction, competence, organizational structure, professional activity, its effectiveness, the types of data held, and the laws regulating operations, as well as data related to management and contracts concluded.

(48) According to Section 3(6) of the Infotv., public data of public interest: all data not falling under the definition of public interest data, the disclosure, accessibility, or availability of which is mandated by law in the public interest.

(49) According to Section 26(2) of the Infotv., public data of public interest includes the name, role, job title, managerial appointment of the person acting within the scope of the tasks and powers of the public authority, other personal data related to the performance of the public task, as well as those personal data whose accessibility is prescribed by law. Public personal data of public interest may be disseminated in compliance with the principle of purpose limitation in data processing.

(50) According to Section 38(2) of the Infotv., the Authority's task is to ensure the enforcement of the right to the protection of personal data, as well as the right to access public interest and public data of public interest.

9

supervision and facilitation, as well as the facilitation of the free flow of personal data within the European Union. The Authority's tasks and powers are defined in detail by Article 57(1), Article 58(1)-(3) of the General Data Protection Regulation, and Sections 38(2)-(4) of the Infotv.

(51) According to Section 4(1) of Act CIV of 2010 on Freedom of the Press and Fundamental Rules of Media Content (hereinafter: Smtv.), Hungary recognizes and protects the freedom and diversity of the press.

(52) Smtv. Section 4(2) The freedom of the press also extends to independence from the state, as well as from any organization and interest group.

(53) Smtv. Section 4(3) The exercise of press freedom must not constitute a crime or incite the commission of a crime, must not violate public morals, and must not infringe upon the personality rights of others.

(54) Smtv. Section 6(1) The media content provider, as well as any person in an employment relationship or other legal relationship aimed at performing work with them, is entitled, according to the law, to keep the identity of the person providing information to them in connection with media content provider activities (hereinafter: information source) confidential during judicial and administrative proceedings, and to refuse the transfer of any document, record, object, or data carrier that may be suitable for identifying the information source.

(55) Smtv. Section 7(1) An employee of the media content provider, or a person in another legal relationship aimed at performing work with the media content provider, is entitled to professional independence from the owner of the media content provider, as well as protection against owner or supporter pressure aimed at influencing media content (editorial and journalistic freedom).

(56) Smtv. Section 10 Everyone has the right to be properly informed about local, national, and European public affairs, as well as events significant for the citizens of Hungary and members of the Hungarian nation. The task of the entire media system is to provide authentic, prompt, and accurate information about these affairs and events.

(57) Smtv. Section 13 Linear media service providers engaged in information activities are obliged to provide balanced information about events of public interest at the local, national, and European

levels, as well as events significant for the citizens of Hungary and members of the Hungarian nation, in the informative or news programs they publish. The detailed rules of this obligation shall be established by law in accordance with the requirements of proportionality and the assurance of democratic public opinion.

(58) Smtv. Section 21(1) The media content provider independently decides on the publication of media content within the framework of the laws and is responsible for compliance with the provisions of this law.

(59) Act LIII of 2018 on the Protection of Privacy (hereinafter: Mvtv.) Section 2:44 [Protection of the Personality Rights of Public Figures] (1) The exercise of fundamental rights ensuring the free debate of public affairs may limit the personality rights of public figures to a necessary and proportionate extent, without violating human dignity; however, it must not infringe upon their private and family life, as well as their home.

(60) (2) A public figure is entitled to the same protection against disclosures or conduct that fall outside the scope of free debate on public affairs as a non-public figure.

(61) (3) Activities or data related to the private or family life of a public figure do not qualify as public affairs.

(62) For data processing falling under the scope of the General Data Protection Regulation, according to Section 2(2) of the Infotv., the General Data Protection Regulation shall be applied with the supplementary provisions specified therein.

(63) According to Sections 60(1) and (2) of the Infotv., in order to ensure the exercise of the right to the protection of personal data, the Authority shall initiate a data protection authority procedure at the request of the data subject and may also initiate a data protection authority procedure ex officio. The initiation of the data protection authority procedure

10

The request may be submitted in the case defined in Article 77(1) of the General Data Protection Regulation and in point b) of Section 22.

(64) According to Section 60(5) of the Infotv., in the case defined in paragraph (2), the request shall include, in addition to what is specified in the law on general administrative procedure:

- a) the designation of the alleged infringement,
- b) a description of the specific behavior or condition that constitutes the alleged infringement,
- c) the data necessary for the identification of the data controller or data processor that is responsible for the alleged infringement, which is available to the applicant,
- d) facts and evidence supporting the claims related to the alleged infringement, and
- e) a specific request for a decision regarding the remedy of the identified infringement.

(65) According to point a) of Section 61(1) of the Infotv., in its decision made in the data protection authority procedure, the Authority may apply the legal consequences specified in Article 58(2) of the General Data Protection Regulation in connection with the data processing operations defined in Section 2(2) of the Infotv. Accordingly, in exercising its corrective powers, the Authority may:

- a) warn the data controller or data processor that certain planned data processing activities are likely to violate the provisions of this regulation;
- b) reprimand the data controller or data processor if their data processing activities have violated the provisions of this regulation;
- c) instruct the data controller or data processor to comply with the request of the data subject regarding the exercise of their rights under this regulation;
- d) instruct the data controller or data processor to bring their data processing operations into compliance with the provisions of this regulation – in a specified manner and within a specified time frame, if applicable;
- e) instruct the data controller to inform the data subject about the data protection incident;
- f) temporarily or permanently restrict the data processing, including prohibiting the data processing;
- g) order the rectification or deletion of personal data, or the restriction of data processing, in

accordance with Articles 16, 17, and 18, and order the notification of the recipients to whom the personal data have been disclosed, in accordance with Article 17(2) and Article 19;

h) revoke the certificate or instruct the certifying body to revoke the certificate issued in accordance with Articles 42 and 43, or instruct the certifying body not to issue the certificate if the conditions for certification are not or are no longer met;

i) impose an administrative fine in accordance with Article 83, depending on the circumstances of the case, in addition to or instead of the measures mentioned in this paragraph; and

j) order the suspension of data flows to a third country or international organization.

(66) According to Section 61(6) of the Infotv., until the expiration of the deadline for initiating a lawsuit against the decision or, in the case of initiating an administrative lawsuit, until the court's final decision, the data affected by the disputed data processing may not be deleted or destroyed.

(67) Based on Section 75/A of the Infotv., the Authority exercises the powers specified in Articles 83(2)-(6) of the General Data Protection Regulation, taking into account the principle of proportionality, particularly by addressing the first violation of the provisions regarding the processing of personal data – as defined in legislation or in mandatory legal acts of the European Union – primarily by warning the data controller or data processor in accordance with Article 58 of the General Data Protection Regulation.

(68) In the absence of differing provisions in the General Data Protection Regulation, the provisions of the Administrative Procedure Act (Ákr.) shall apply to the data protection authority procedure initiated by a request, with the deviations specified in the Infotv.

(69) According to Section 35(1) of the Ákr., the request is a statement by the client requesting the conduct of an authority procedure or the decision of the authority in order to enforce their rights or legitimate interests.

(70) According to Article 83(7) of the General Data Protection Regulation, without prejudice to the corrective powers of supervisory authorities under Article 58(2), each member state may establish rules regarding the public authority or other entities based in that member state.

11

Can an administrative fine be imposed on a public task performing authority, and if so, to what extent?

IV. Evidence considered by the Authority in its decision and its evaluation

IV.1. The public figure status of the Applicant

(71) In the reasoning of decision 3145/2018. (V. 7.) AB, the body emphasized that “[t]he decisive aspect of establishing public figure status is not the status of the individual concerned, but whether the participants in public debates concerning public affairs or deemed to be public life have voluntarily become actors in public affairs and public life, either regularly or occasionally.” {3145/2018. (V. 7.) AB decision, Reasoning [50] paragraph}

(72) The Authority accepts the classification of the Budapest Court of Appeal, which stated in the reasoning of judgment 2.Pf.20.757/2020/6 regarding the Applicant: “[T]he plaintiff, who works as a midwife in her own business, clearly does not qualify as a public figure; giving testimony in a criminal proceeding does not constitute public performance, [...]”. {Reasoning [56]}

(73) The Applicant cannot be considered a public figure or a public life participant in relation to the news articles examined in this case, despite the significant public interest associated with the judicial proceedings discussed in the articles, since the Applicant participated in the proceedings discussed in the articles solely due to her professional activities, as a person performing midwifery tasks, as a witness in the criminal proceedings, and not in a position burdened with public duties.

(74) The Authority notes: in its view, the Applicant may be considered a public figure due to her expressions on certain public-political issues; however, it is not sufficient that the Applicant's spouse is a person performing public duties as a mayor and a public figure as a politician, since on this basis, any close relative of a politician would automatically become a public figure, which clearly contradicts the purpose of the law on the protection of private life: the justification of the Mvtv. emphasizes that the relative of a public figure is not specifically named by the law, and merely considering the public figure, the relative cannot be regarded as a public figure.

(75) The Authority further does not accept the Respondent's argument that the Applicant took an active public and political role when she participated in her politician husband's campaign and "distributed flyers," and therefore her personal and other activities are of public interest. The Applicant – naturally – assisted her husband's political campaign activities as a relative, a family member; however, this does not automatically make her a public figure or a public life participant, just as individual helpers and activists in political campaigns are not automatically considered public figures due to their activities.

IV.2. The identity of the data controller

(76) According to the founding document signed on June 24, 2019, the registered publisher of hírportál.hu (publisher's name) merged on September 30, 2019, into the Respondent company designated as the general legal successor, as the acquiring company, which resulted in the legal entity status of the merging company ceasing.

(77) The data protection notice effective from October 1, 2019, and last updated on October 1, 2021, on the hírportál.hu online news platform states in point 1 that regarding the data processing associated with the use of the www.hírportál.hu website, the data controller is the Respondent company, that is, the Respondent. The imprint of the website also identifies the Respondent as the publisher.

(78) The publication of the newspaper articles contested by the Applicant falls under the scope of the General Data Protection Regulation (GDPR) Article 2 (1), and consequently, the rules of the GDPR apply to this data processing.

(79) Based on the provisions in paragraphs (69)-(71), the Respondent qualifies as the data controller regarding the contested data processing as the publisher of the online press products of hírportál.hu.

IV.3. The contested personal data

12

(80) The statements and descriptive information disclosed in the contested newspaper articles that can be associated with the Applicant, including the Applicant's role in the criminal proceedings, statements made therein, qualifications, and professional knowledge, qualify as the Applicant's personal and sensitive data. At the same time, the Authority holds the view that the contested articles mix personal data concerning the Applicant with opinions taken from other articles by the Respondent, which the Authority does not have the jurisdiction to assess.

(81) The Authority identified the following personal data concerning the Applicant in the contested articles:

- the Applicant's name, including the search tags of the articles (Article 1, Article 2)
- data regarding the role in the criminal proceedings (Article 1: "[...] a criminal proceeding is ongoing regarding a baby death case from five years ago, and the Applicant has been heard as a witness [...])")
- data regarding the midwifery activities ("[...] - did not have a valid operating license, did not have an ÁNTSZ license, [...]." Article 2)
- and an image depicting the Applicant (Article 1). Article 1 has since been amended, resulting in the current absence of the image depicting the Applicant in its content.

(82) The Applicant's name is clearly personal data. The mention of the name in the contested articles and their search tags constitutes unlawful data processing in the absence of the consent of the affected party or justification of a compelling legitimate interest supporting the publication.

(83) The fact that the Applicant appears as a witness in a criminal proceeding qualifies as special, criminal personal data under Section 3, point 4 of the Infotv., and its disclosure by the Respondent constitutes data processing subject to the EU data protection regulation [NAIH-2868-23/2021 decision]. The qualification of the witness position as "currently" in Article 1—considering the state of the criminal proceedings concerning the Applicant at the time of the online article's publication—can be assessed as data processing incompatible with the purpose indicated by the Respondent, namely the authentic information of the public.

(84) The Authority reviewed the data sheet concerning the Applicant in the registry of healthcare workers [<https://kereso.enkk.hu/index.php>], which indicates that the Applicant holds a midwifery qualification: as a healthcare professional, the Applicant had a valid operating license (midwifery

qualification) from November 4, 2011, to November 4, 2021, and additionally obtained the points for midwifery care in both theoretical and practical areas in 2016. This data qualifies as public data in the public interest under Section 26, paragraph (2) of the Infotv., which can be disseminated in compliance with the principle of purpose limitation in data processing.

(85) The purpose-limited dissemination in this case would have been organically linked to fair data processing; however, the Respondent emphasized the opposite purpose, stating that the Applicant did not possess the qualifications and licenses necessary for the performance of professional activities.

IV.4. Disclosure of the image as personal data

(86) The image originally published in Article 1 depicted the Applicant in the context described in paragraphs (9)-(10). The Respondent did not indicate to the Authority any intention to modify the contested content or to delete the image depicting the Applicant. As of April 5, 2023, the image depicting the Applicant was no longer available in Article 1. However, the Authority emphasizes that the deletion of the contested image did not nullify the unlawful data processing conducted by the Respondent.

(87) Article 10 of the European Convention on Human Rights extends to the publication of photographs, meaning that the freedom of expression includes the publication of photographs as well. [Egeland and Hanseid v. Norway, no. 34438/04, judgment of April 16, 2009, Von Hannover v. Germany, no. 59.320/08, judgment of June 24, 2004, Von Hannover v. Germany, no. 40.660/08 and 60.641/08, judgment of February 7, 2012, Von Hannover v. Germany no. 8772/10, judgment of September 19, 2013, Verlagsgruppe News GmbH. and Bobi v. Austria, 59.631/9, December 4, 2012.] The ECtHR generally refers to the aspects that must be examined when assessing the legality of the publication of an image without the consent of the affected person. These include: the extent to which the publication contributes to public debate, how well-known the affected person is, and what the press release entails.

13

The subject matter includes the previous behavior of the affected person, as well as the circumstances under which the recording was made (the method of obtaining the information and its authenticity, circumstances), and the content, form, and consequences of the communication. An additional condition is that there must be a connection between the article and the presented image, with the article's content being related to the latter.

(88) Based on the description in paragraph (82), a connection can be established between the visual representation of the contested image and the content of Article 1: the Applicant, who is involved as a witness in the criminal proceedings, is visible as a central figure in the photo, with the background provided by the environment related to childbirth outside the institution.

(89) The Authority conducted a search on the Internet based on the statement regarding the contested image. It was found that the image contested by the Applicant was also used by other media outlets without displaying the source:

- a. link1 (currently accessible)
- b. link2 (currently accessible).

(90) The Authority also refers to the ECtHR decision no. 931/13, in which the Grand Chamber pointed out that the mere fact that some information is accessible to the public does not necessarily exempt it from the protection of Article 8 of the European Convention on Human Rights (hereinafter: the Convention). It further emphasized that Article 8 of the Convention includes a certain form of the right to informational self-determination, under which individuals can act against the collection, processing, and publication of their data—even if it is neutral and not accompanied by value judgments, but still affects their rights under Article 8 regarding privacy. In this case, the criterion of "neutral and not accompanied by value judgments" is not met, thus the fact that the image was made with the Applicant's consent for the original communication does not make the processing of the contested data lawful.

(91) In summary, the Contested Party used the image depicting the Applicant in Article 1 without the Applicant's consent, thereby violating Article 6(1)(a) of the General Data Protection Regulation.

IV.5. Legal Basis for Data Processing

(92) The data from the web.archive.org site regarding the news portal www.hirportal.hu's page saved on March 30, 2019, reveals the Contested Party's privacy notice effective from May 22, 2018 (hereinafter: Notice) [<https://web.archive.org/hirportal/info-adatvedelmi-tajekoztato>].

The Notice identifies the operator of the news portal as the data controller. The scope of the Notice extends to the publication and distribution of the Contested Party's press products, which includes the "principles of data processing and data protection," such as purpose limitation and data minimization, as well as accountability. The Notice listed all data processing legal bases according to the General Data Protection Regulation and details the rights of users (data subjects); it imposed a burden of proof in cases of exercising the right to object, weighing the compelling legitimate interest underlying the data processing against the interests of the data subject. Additionally, it regulated the Contested Party's procedure during the exercise of data subject rights.

(93) The Notice effective from October 1, 2019, details the data processing related to editorial content in point 4(b). [<https://Kérelmezett/adatvedelmitajekoztato20211001.pdf>] According to the referenced point of the Notice, the purpose of data processing is: media service, informing the public (this includes, for example, the publication of a photograph provided by the Data Subject in printed press products or on the Website, provided that the Data Subject, or in the case of a Data Subject under 16 years of age, their legal representative has consented). The scope of processed data includes editorial content (e.g., photographs, statements, interview content). Legal basis for data processing: consent; legitimate interest (e.g., in the case of participation of a public figure or at a public event). Name of legitimate interest: freedom of the press, freedom of expression, informing the public. Duration of data processing: the Contested Party archives the content published in printed and digital press products and only deletes it if necessary as a result of the exercise of any right of the Data Subject.

(94) Completely disregarding the above, the statements made by the Contested Party in this case regarding the legality of the data processing it performed refer solely to the Fundamental Law and the Smtv.

14

10. In reference to §10, in no case did it specify a legal basis under Article 6 of the General Data Protection Regulation.

(95) According to the consistent position of the Authority, the legal basis for data processing related to journalistic activities—unless it concerns voluntary consent—is the legitimate interest under Article 6(1)(f) of the General Data Protection Regulation. The application of this legal basis has also been confirmed by the Curia in its judgment Kfv. 37.978/2021/10. §10 of the Media Act establishes the public's right to information, that is, their right to be informed about local, national, and European public affairs, as well as events significant for the citizens of Hungary and members of the Hungarian nation, and states that the press's task is to provide authentic, prompt, and accurate information on these matters and events. In this regard, the court stated in the referenced judgment that this provision of the Media Act does not impose a public interest task on the media outlet, thus the journalistic activities it performs cannot be classified as a public interest task or, in the terminology of Hungarian national law, a public duty. The court also pointed out that journalistic activities are related to the fundamental right to information and the right to be informed as defined in the Fundamental Law. According to these provisions, the press's task is necessary for ensuring the constitutionally protected fundamental rights enshrined in the Fundamental Law, and therefore, the data processing necessary for fulfilling this task is essential for the press to carry out its duties as recorded in the Media Act.

(96) During the administrative procedure, the responses given in reaction to the calls can be evaluated as statements of interest balancing by the Applicant, in which the Respondent stated that the contested news articles and the personal data of the Applicant contained therein were made public for the purpose of opinion formation in one of today's widely discussed, significant public debates, in order to inform the public.

(97) The Respondent defined the family tragedies involving the deaths of infants and the subsequent criminal proceedings as the subject of public debate. It referred to the Applicant's active public and political role, which was supported by three press articles, as well as to the fact that several media

outlets have recently dealt with the Applicant's related midwifery activities. However, the Respondent did not address in its statements how the processing of the Applicant's personal data and their disclosure is necessary to achieve the stated purpose.

(98) According to the consistent practice of the Authority, in the case of the re-publication (summarization) of a news article, the data processing activity of the source publisher—thus the fulfillment of its data protection obligations and the balancing of interests—does not have a direct impact on either the data processing activity of the re-publishing media outlet or its data controller liability, since the given news report must, by virtue of §21(1) of the Media Act, independently comply with data processing requirements. The media content provider independently decides on the publication of media content within the framework of the law. Therefore, it follows that if a media outlet publishes or "reuses" an article containing personal data, it is not exempt from the obligation to individually examine whether the same content can be lawfully published as the re-used article or information. [NAIH-2926-8/2021.]

(99) The Authority's position is that both the source and the re-publishing media outlet qualify as independent data controllers, making independent data controller decisions regarding their data processing activities, and thus they are separately responsible for those decisions. "A previously published content does not exempt the data controller executing the re-publication from the obligation to conduct its own data processing lawfully. The content provider qualifies as an independent data controller when making the details of the report public through its own media content, and the legality of its data processing must be assessed independently of any other data controller, including that of the Respondent." [NAIH-68-3/2021.]

(100) The Authority finds that the Respondent made the personal data of the Applicant specified in paragraph (81) of this Decision public without an appropriate legal basis in the contested articles, thereby violating Article 6(1) of the General Data Protection Regulation.

IV.6. The Respondent's legitimate interest, balancing of interests

(101) In applying the legitimate interest legal basis, the processing of the affected personal data occurs without the consent of the affected individual, therefore it is of significant importance that the data controller thoroughly assesses how the planned data processing affects the right to informational self-determination of the affected individual.

15

will have an impact, especially in the case of online publicity. The balancing of interests must be carried out before the planned data processing begins, and if the data subject objects to the data processing within the framework of exercising their rights, the data controller has the obligation to respond by conducting a specifically tailored individual, repeated balancing of interests for that data subject.

(102) The Applicant exercised their right of access and objected to the data processing, submitting a request for deletion to the Respondent on December 15, 2021. In their objection to the contested data processing, they stated that their husband is a politician; however, the central theme of the contested articles is that the Applicant is responsible for the death of an infant, in violation of the rules of their profession. Furthermore, the articles imply criminal liability and report on the Applicant's role related to the incident. The Applicant also stated that the contested data processing is related to their professional activities, which do not qualify as public or political activities, nor as information related to the Applicant's public presence. Information regarding the Applicant's testimony in a criminal case and their qualifications do not qualify as public matters. During the objection, they pointed out that both the acquisition of midwifery qualifications and the tragic incidents occurred prior to their spouse's political career. They further emphasized that a final judgment states that the processing of personal data related to their professional activities is not necessary for the performance of journalistic duties, thus the Respondent cannot legitimately invoke Article 17(3) of the General Data Protection Regulation regarding the deletion of the contested data.

(103) In the response sent on January 10, 2022, to the letter submitted by the Applicant in the context of exercising their rights, the Respondent justified the disclosure of the Applicant's data solely by referencing legal provisions. In their letter, they emphasized their position that the purpose of the

publication was to form opinions in a widely relevant public debate of significant material weight, during which, in their opinion, unlawful data processing did not occur.

(104) In the current procedure, the Respondent did not make a statement regarding the preparation of the balancing of interests test. From the answers given to the questions posed by the Authority during the clarification of the facts, the Authority has at its disposal the Respondent's opinion regarding the public debate character, relevance of the contested articles, as well as the Applicant's public and political engagement [Statement4., Statement5.], based on which the Authority was able to identify some of the aspects that the Respondent should have considered during the balancing of interests, among other factors.

(105) During the mandatory balancing of interests, the Respondent should have taken into account all factors influencing the assessment, including the reasons specified by the Applicant in their request. A superficial, generally stated assessment that disregards the impact of the data processing on privacy does not meet the requirements arising from the General Data Protection Regulation and results in a violation of the right to object. [NAIH/2020/838/2.]

(106) In defining legitimate interest, it is required that the specified interest be clear; thus, a broadly and generally formulated legitimate interest cannot be accepted. According to the Authority's position, when publishing articles containing personal data by media products, the balancing of interests must also take into account the specific characteristics of the communication and must reflect on them separately. A general balancing of interests that does not consider the specific personal data and the characteristics of the data processing does not meet the requirements of the General Data Protection Regulation. [NAIH-3119-21/2021.]

(107) The Curia expressed a supporting opinion in its judgment Kfv.III.37.978/2021/10, stating that in the case of legitimate interest as a legal basis, the data controller must always examine the legitimate interest in relation to the specific situation and activity and whether the data processing is necessary to achieve the objective. After assessing the interests and expectations and analyzing the impact on the data subjects, it must be determined why the legitimate interest of the data controller or a third party proportionately restricts the rights of the data subjects.

(108) In the Respondent's response to the data subject's request, they did not detail why the data processing concerning the Applicant's personal data, carried out during the information provided regarding the freedom of expression of public opinion, proportionately restricts the Applicant's right to informational self-determination. The Respondent also failed to explain how the processing of the Applicant's personal data and their disclosure were necessary to achieve the stated objective.

16

in order to. Furthermore, it did not elaborate on the specific subject of the contested communications: whether it was to report on a criminal proceeding initiated due to an infant death, in which the spouse of a political public figure is involved as a witness; or whether it was to summarize previously published press articles related to the criminal proceeding and to publicly disclose the contents again.

(109) Considering its established practice regarding the protection of personal data, the Authority determined that the mere fact that the Applicant's published personal data had previously been made public does not exempt the Respondent data controller from the obligation to conduct a precise and detailed balancing of interests regarding the processing of such personal data. [NAIH-3119-21/2021.] Therefore, the fact that another media outlet had already disclosed the Applicant's personal data does not relieve the re-publishing Respondent of its data controller obligations.

(110) Based on the above, the Authority does not accept the Respondent's position expressed in the statements related to the legal basis and purpose of data processing [Statement 4, Statement 5] as a specific balancing of interests supporting the Respondent's legitimate interest, because the Respondent only considered its own interests and misinterpreted the concepts of public participation and public figure in relation to the Applicant. The Respondent incorrectly concluded that the Applicant had become an active public figure by assisting her politician husband during the campaign period. In this regard, the Respondent stated that the Applicant's identity and other activities are of public interest, which, according to its position, justified the relevance of disclosing the contents of the contested articles related to cases of infant deaths. In the present case, the Respondent did not

conduct any further balancing of interests that also extends to and evaluates the Applicant's interests.

(111) The topic of childbirth outside of medical institutions is of public interest; the press has addressed this issue multiple times, presenting arguments both for and against during public information efforts. According to the Authority, the purpose of the contested articles and the related data processing was not specifically to generate social debate related to public issues or to shape public opinion, as the contested articles focused solely on the tragedies that had become public and targeted the statements made by the Applicant in the criminal proceedings, her professional qualifications, and her activities as a midwife. In the Authority's opinion, it is difficult to refer to informative reporting that shapes public opinion in a social debate when the content and formulation of the news articles suggest a one-sided perspective, excluding the possibility of individual opinion formation.

(112) Furthermore, the Authority believes that the Respondent could not base its data processing related to Article 2 on the legitimate interest of facilitating the expression of opinion on a public issue of significant public interest, as in the contested article, the Respondent—despite the fact that the criminal proceeding had already concluded and the Respondent was aware of this according to Statement 4—selected the content from previous, non-updated articles.

(113) Based on the above, the Authority finds that the Respondent, by not properly conducting the balancing of interests supporting its legitimate interest concerning the data processing related to the contested articles at the request of the Applicant, and by not deleting the Applicant's unlawfully processed personal data, violated Article 17(1) and (3) of the General Data Protection Regulation, as well as Article 21(1) of the General Data Protection Regulation concerning the Applicant.

IV.7. The principle of purpose limitation and data minimization

(114) The Respondent identified the purpose of its data processing as informing the public, thereby contributing as a media outlet to the substantive assessment of significant public debate, thus facilitating social opinion formation. The public issue related to the Applicant's professional activities is the topic of home childbirth, which has sparked and continues to spark intense debate today. The disclosure of news related to home births that ended in tragedy continuously keeps this topic at the center of interest.

(115) However, it is clear regarding the contested articles that they do not present the journalist's pro and con arguments related to the public issue of home childbirth, which would serve as a thought-provoking basis—

17

would indeed contribute to shaping public opinion. It cannot be said that the articles cite tragedies as arguments in favor of choosing hospital births.

(116) The contested articles solely concern the Applicant's testimony in the criminal proceedings, as well as the widely publicized family tragedies associated with the Applicant's persona linked to home births.

(117) It can also be established from the Respondent's statements that the main purpose of the public disclosures is to reiterate information previously made public from other sources concerning the Applicant, who serves as a witness in a criminal proceeding already known to the public, thereby keeping the information about the Applicant in the public consciousness, with the consequence that the Applicant's persona – and through them, their public figure spouse – is cast in a negative light.

(118) The contested articles and the search terms leading to them also name the Respondent's politician husband. Article 2 – published in August 2021 – clearly refers to the current political situation: the primary election, the first round of which took place on September 18, 2021.

(119) According to the Authority's consistent position, if a criminal proceeding indeed warrants public interest, the media's reporting on it must strive to handle personal data only to the necessary extent, adhering to the principle of data minimization, especially if the information can fulfill its purpose without disclosing personal data. This particularly applies to secondary participants in the proceedings (e.g., witnesses, experts), and it is irrelevant if the direct relative of the person involved in the proceedings is a well-known politician.

(120) Referring to the Constitutional Court's opinion expressed in Decision 3209/2020 (VI. 19.), which

states that “the mere curiosity of the public, the hunger for gossip does not establish the public interest character of a question,” it can be concluded that the Respondent has not convincingly demonstrated the lawful purpose of processing the disclosed personal data, compliance with the requirement for accurate and reliable information, and the substantiation of “public affairs.”

(121) Based on the above, the Authority finds that the contested articles violate the purpose limitation of data processing under Article 5(1)(b) and the data minimization principle under Article 5(1)(c) of the General Data Protection Regulation.

IV.8. The principle of fair data processing

(122) The inclusion of the Applicant's personal data in an article concerning the named infant deaths establishes a violation of the principle of unfair data processing.

(123) The articles do not contain any explicit journalistic “added value” or opinion; they merely compile content taken from other articles into a news piece. The referenced articles – and consequently the contested Article 2 – do not focus on the infant deaths or information about the criminal proceedings, but rather on the Applicant's persona, which is particularly striking in the case of the “[...] child.”

(124) The personal data processed in the examined articles – referring to the cited constitutional court finding – had genuine relevance concerning the Applicant's testimony in the criminal proceedings at the time (January 4, 2019). In this regard, the Authority cites the established position recognized in the practice of the European Court of Human Rights (ECHR), which states that “news reports, articles are ‘perishable goods,’ meaning that any delay in their publication, even for a short time, can deprive them of their value and the interest surrounding the report (Kablis vs. Russia, no. 48310/16 and 59663/17.91.S); they are suitable for shaping democratic public opinion, contributing to current affairs, and informing citizens when their disclosure is timely, that is, aligned with the current public affairs and does not delay.” In contrast, Articles 1 and 2 are still accessible to the public with modified content.

(125) The Authority also considers it unfair data processing that the Respondent solely named the Applicant and placed them at the center of the contested articles related to the tragedy, despite the fact that their secondary role in the given criminal proceedings was well-known and the results of the criminal proceedings establishing the criminal liability of other individuals had also become known. The fact that the

18

The Applicant continues to ensure access to the modified content of Article 1 and Article 2 on the internet interface, supporting the assertion that the Respondent does not wish to contribute to the public debate indicated by it regarding the contested contents.

(126) The Authority further notes that the Respondent could not base the disclosure of either Article 1 or Article 2 on the active political activities conducted by the Applicant, as the news articles referenced to support its claim were only published in 2022, and the Respondent did not refer to any other statements, public events, or posts on social media in this regard. Based on the above, the Authority believes that the Respondent has violated Article 5(1)(a) of the General Data Protection Regulation concerning the contested articles.

IV.9. The Principle of Transparent Data Processing

(127) The requirement of transparency is intrinsically linked to lawful data processing. The General Data Protection Regulation clearly states in Chapter III that the process of data processing and its documentation should be accessible to the outside world, but most importantly to the data subject. Consequently, the principle of transparency presupposes communication between the data controller and the data subject, ensuring that the data subject is informed about the essential elements of the data processing concerning them. Therefore, the data controller must make compliance with data protection rules a part of its general practice and must ensure that its data processing activities comply with data protection regulations.

(128) The Respondent has a detailed privacy notice as described in paragraphs (92)-(93); however, during the clarification of the facts, it became evident that the Respondent either does not know the content of this notice due to negligence or intentionally disregards it.

(129) The Authority also assesses as a violation of the principle of transparent data processing that the

publication dates of the news articles provided by the Respondent are difficult to determine, as the Respondent did not specify either the exact publication date or the author of the articles on its news interface. The Authority, alongside the Applicant's statement, could only identify the year and month of publication from the access path of the articles (Article 1: February 25, 2019, Article 2: August 10, 2021). The unlawful state still exists with modified content starting from the publication dates of the articles.

(130) Based on all of the above, the Authority establishes that the Respondent violated Article 5(2) of the General Data Protection Regulation in relation to the data processing associated with the disclosure of Article 1 and Article 2.

IV.10. Enforcement of Data Subject Rights

(131) The Authority has requested the Respondent's statement on several occasions regarding how it ensured the exercise of the Applicant's data subject rights concerning the contested data processing. The Respondent did not provide a statement on these questions, thus the Authority only has the deletion request submitted by the Applicant and the Respondent's response to it.

(132) The Applicant exercised the right of access and objected to the data processing, submitting a deletion request to the Respondent. The Applicant precisely indicated the access points of the contested articles and requested that the Respondent ensure the Applicant's right of access; grant the objection and cease the data processing, as well as delete the Applicant's personal data. In connection with the objection, the Applicant referred to and attached the judgment of the Budapest Court of Appeal, case number 2.Pf.20.757/2020/6, which established the infringement of the Applicant's good reputation. The Applicant requested the deletion of personal data related to their professional activities based on Article 17(1)(c) and (d) of the General Data Protection Regulation.

(133) The Respondent formally complied with its obligation to inform the data subject regarding the request, as it responded to the Applicant's request within 30 days. However, in the response, the Respondent did not provide information regarding the legal basis, duration, or source of the personal data processed concerning the Applicant. Despite the Applicant's explicit request, the Respondent did not disclose information on how it complied with the General Data Protection Regulation.

19

regarding the balancing of interests under Article 14(2)(b) of the General Data Protection Regulation. Thus, the Respondent did not ensure the Applicant's right to verify the data processing process concerning their personal data carried out by the Respondent within the framework of the exercise of rights by the data subject, thereby failing to comply with the principles of data processing under the General Data Protection Regulation (transparency). In the Applicant's request as a data subject, they sought to know the data concerning them that the Respondent processed but did not disclose in any of the contested articles [General Data Protection Regulation Article 15(3)]. The Respondent stated in its declaration made in this administrative procedure, in response to the Authority's inquiry [Declaration2.], that it does not process any personal data concerning the Applicant other than the personal data used in the contested articles.

(134) According to Article 21(1) of the General Data Protection Regulation, the data subject may object to the processing of their personal data at any time for reasons related to their particular situation, and in such cases, the data controller is obliged to essentially repeat the balancing test, but now in an individualized form, to demonstrate that the legitimate interests related to the data processing take precedence over the rights and interests of the data subject. The Applicant objected to the contested data processing in their request as a data subject. As a reason related to their particular situation, the Applicant stated that the contested articles undermine their professional integrity, call their qualifications into question, and hinder their operations. The reasons listed are clearly related to their own situation, work, and professional activities, and it is undisputed that the articles had a negative impact on the Applicant's professional reputation.

(135) In this case, during the clarification of the facts, the Respondent did respond to the Applicant's request for access and deletion concerning the exercise of rights by the data subject; however, in its response, it did not fulfill the access and deletion request specified in the request of the Applicant, nor

did it analyze and justify in detail, taking into account the interests of the Applicant, its legitimate interest-based data processing. The Authority also notes that in this procedure, the Respondent ignored the questions regarding the manner of ensuring the rights of the data subjects [NAIH-2809-2/2022, NAIH-2809-4/2022.] and did not respond to them.

(136) Based on all of the above, the Authority finds that the data processing carried out in the contested articles infringes the rights of the data subjects under Article 14(2) and Article 15(1) and (3) of the General Data Protection Regulation.

IV.11. Request for Imposition of Fine

(137) The application of the data protection fine does not directly affect the rights or legitimate interests of the Applicant; such a decision by the Authority does not create rights or obligations for the Applicant. Therefore, regarding this consequence, which falls within the scope of public interest enforcement, the Applicant is not considered a party under Section 10(1) of the Administrative Procedure Act, and since it does not meet the requirements of Section 35(1) of the Administrative Procedure Act, there is no place for submitting a request in this regard, and these parts of the submission cannot be interpreted as a request.

V. Legal Consequences

(138) The Authority found the Respondent liable for the implementation of the data protection violation under Article 58(1)(b) of the General Data Protection Regulation.

(139) The Authority examined ex officio whether it was justified to impose a data protection fine due to the Respondent's violation. In this regard, the Authority assessed all circumstances of the case ex officio based on Article 83(2) of the General Data Protection Regulation and Section 75/A of the Information Act, and found that in the case of the violations uncovered during this procedure, a warning would neither be proportionate nor have a deterrent effect; therefore, the imposition of a fine is necessary.

(140) The Authority established serious, fundamental violations of principles concerning the data processing carried out by the Respondent related to the contested articles.

V.1. Establishment of Data Protection Fine

20

(141) The Authority considered the following factors as aggravating circumstances during the imposition of the fine:

I. The Respondent has continuously made news articles containing the personal and public interest personal data of the Applicant available online since their publication [Article 1. February 25, 2019, and Article 2. August 10, 2021], and they are currently accessible with modified content. [Article 83 (2) a)]

II. The Respondent also confirmed in its statements that its data processing was intentional. Despite the Respondent's claim that it was aware of the court press release concerning the criminal proceedings involving the affected party, it did not disclose the current data regarding the Applicant in its publication following the release (Article 2). In both contested articles, the Respondent categorized the individual cases as matters of public interest, which it connected, directly and indirectly, to the Applicant and their professional activities. The Respondent focused solely on the cases that ended in tragedy and the details of the criminal proceedings affecting the Applicant; the issue of childbirth outside the institution is not even mentioned in the contested articles. [Article 83 (2) b)]

III. The Authority, in the context of a data protection authority procedure, already examined the Respondent's data processing related to the enforcement of the fundamental right to freedom of the press and freedom of expression in the year 2022 [NAIH-3797/2022.], during which it established the unlawful processing of the contested personal data and ordered the Respondent to pay a data protection fine. [Article 83 (2) e)]

(142) The Authority considered the following factors as mitigating circumstances during the imposition of the fine:

I. The Respondent modified the content of both contested articles: it removed the contested image depicting the Applicant from the content of Article 1, and in the text added before the content of Article 2, it acknowledged that it violated the Applicant's personality rights with the content published in Article 2, and that it processed the Applicant's personal data related to their professional activities, professional knowledge, and witness testimony in the criminal proceedings without a proper legal basis, without a compelling legitimate interest, and in violation of the principles of fair data processing, purpose limitation, and accuracy.

(143) In determining the amount of the fine, the Authority primarily considered that the established violations qualify as a violation falling under the higher fine category according to Article 83 (5) a) of the General Data Protection Regulation, based on which the maximum fine that can be imposed is 20,000,000 EUR, or in the case of enterprises, an amount not exceeding 4% of the total annual worldwide turnover of the previous financial year, with the higher amount being imposed between the two. The Respondent operates as a media company, and according to the company registry data, it has one main shareholder who exercises significant influence. The net sales revenue of the Respondent, according to the most recent available data from 2021, was 47,790,082,000 HUF.

(144) Considering the severity of the established violations, the Authority took into account the maximum fine specified in the General Data Protection Regulation and the Respondent's consolidated balance sheet data for the year 2021 in determining the amount of the fine.

V.2. Restriction of Access to Personal Data

(145) In point III. b) of the operative part, the Authority ordered, as a legal consequence following the expiration of the deadline for initiating legal proceedings against this decision, or in the case of administrative litigation, the finality of the court decision, the immediate deletion of the personal data specified in point I. of the operative part from Article 1 and Article 2, since the processing of the contested personal data was carried out by the Respondent without a proper legal basis, in violation of the data processing principles defined in the General Data Protection Regulation.

(146) In point III. c) of the operative part of this decision, the Authority temporarily restricted access to the personal data of the Applicant disclosed in the contested articles as a precautionary measure until the finality of this decision, based on Article 58 (2) f) of the General Data Protection Regulation, since the publication of the contested personal data would continue to maintain a harmful situation for the Applicant.

21

(147) Based on the above, the Authority decided as stated in the dispositive part.

VI. Other Issues

(148) The Authority's jurisdiction is defined by Section 38 (2) and (2a) of the Infotv., and its competence extends to the entire territory of the country.

(149) The decision is based on Sections 80-81 of the Ákr. and Section 61 (1) of the Infotv. The decision becomes final upon its communication in accordance with Section 82 (1) of the Ákr.

(150) The rules of administrative litigation are determined by Act I of 2017 on Administrative Litigation (hereinafter: Kp.). According to Section 12 (1) of the Kp., administrative litigation against the Authority's decision falls under the jurisdiction of the court, and based on Section 13 (3) a) aa) of the Kp., the Metropolitan Court is exclusively competent for the case. According to Section 27 (1) b) of the Kp., legal representation is mandatory in cases falling under the jurisdiction of the court. According to Section 39 (6) of the Kp., the submission of the statement of claim does not have a suspensive effect on the validity of the administrative act.

(151) According to Section 124 (6) of the Kp., if, in the case of a permissible joinder of claims by law, part of the claims should be adjudicated under simplified proceedings and another part under general rules, the court shall proceed according to the general rules.

(152) Section 29 (1) of the Kp. and, in this regard, Section 604 of the Pp. apply, and according to Section 9 (1) b) of Act CCXXII of 2015 on the General Rules of Electronic Administration and Trust Services (hereinafter: E-ügyintézési tv.), the client's legal representative is obliged to maintain

electronic communication.

(153) The time and place for the submission of the statement of claim are determined by Section 39 (1) of the Kp.

(154) The amount of the administrative litigation fee is determined by Section 45/A (1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The party initiating the procedure is exempt from the advance payment of the fee under Section 59 (1) and Section 62 (1) h) of the Itv.

Dated: Budapest, according to electronic signature

Dr. habil Péterfalvi Attila

President, Associate Professor